

HOUSE No. 2498**The Commonwealth of Massachusetts**

PRESENTED BY:

Rita A. Mendes

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to address conflicts of interest in the use of temporary nursing agencies at skilled nursing facilities.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Rita A. Mendes</i>	<i>11th Plymouth</i>	<i>1/16/2025</i>
<i>Rodney M. Elliott</i>	<i>16th Middlesex</i>	<i>5/7/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>5/7/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>5/7/2025</i>
<i>Erika Uyterhoeven</i>	<i>27th Middlesex</i>	<i>5/7/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>5/7/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>5/7/2025</i>
<i>Jason M. Lewis</i>	<i>Fifth Middlesex</i>	<i>5/7/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>5/7/2025</i>
<i>Adam J. Scanlon</i>	<i>14th Bristol</i>	<i>5/7/2025</i>
<i>Mary S. Keefe</i>	<i>15th Worcester</i>	<i>5/7/2025</i>
<i>Bud L. Williams</i>	<i>11th Hampden</i>	<i>5/7/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>5/7/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>5/7/2025</i>
<i>Christopher J. Worrell</i>	<i>5th Suffolk</i>	<i>5/7/2025</i>
<i>Michael P. Kushmerek</i>	<i>3rd Worcester</i>	<i>5/7/2025</i>
<i>Estela A. Reyes</i>	<i>4th Essex</i>	<i>5/12/2025</i>

<i>Russell E. Holmes</i>	<i>6th Suffolk</i>	<i>5/25/2025</i>
<i>Michelle M. DuBois</i>	<i>10th Plymouth</i>	<i>5/25/2025</i>
<i>David Henry Argosky LeBoeuf</i>	<i>17th Worcester</i>	<i>5/25/2025</i>
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>11/10/2025</i>
<i>Leigh Davis</i>	<i>3rd Berkshire</i>	<i>11/10/2025</i>

HOUSE No. 2498

By Representative Mendes of Brockton, a petition (accompanied by bill, House, No. 2498) of Rita A. Mendes for legislation to further regulate temporary nursing agencies employment at skilled nursing facilities. Public Health.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to address conflicts of interest in the use of temporary nursing agencies at skilled nursing facilities.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. (a) Notwithstanding any special or general law to the contrary, the
2 department of public health is directed to amend the state regulations governing temporary
3 nursing agencies procuring or providing temporary employment at a skilled nursing facility (101
4 CMR 345).

5 (b) Such amendment shall require additional reporting from any individual or their family
6 member or a business entity under their operational control that has both ownership interest of 5
7 percent or more of a temporary nursing agency and that is also the holder of an operating license
8 issued to establish or maintain a Massachusetts skilled nursing facility. A temporary nursing
9 agency owned by any such individual or family member or business entity shall be prohibited
10 from procuring or providing temporary employment at a skilled nursing facility jointly owned by
11 the same individual, family member, or entity. Such amended regulations shall define a family
12 member broadly as including but not necessarily limited to the individual owner's spouse,

13 domestic partner, parent, sibling, child, parent of a spouse or domestic partner, grandparent, or
14 grandchild.

15 (c) Prior to and during the process of making the regulatory amendments outlined in the
16 subsections above, the department shall consult with the Massachusetts Senior Care Association,
17 Inc. and 1199 SEIU United Healthcare Workers East.

18 (d) The department of public health shall complete the processes above and file for
19 Emergency Adoption of such amended regulations no later than 180 days after passage of this
20 Act.